

CYPRUS REPUBLIC

File No.: 11.17.001.008.227

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

DECISION

Complaint regarding the violation of personal data

Based on the duties and powers conferred upon me by Article 57(1)(f) of the Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I examined a complaint submitted to my Office, pursuant to Article 77(1) of the Regulation, against the Cyprus Football Association (hereinafter referred to as the "Respondent" or "the Association"), as well as against the company Google LLC. The complaint was submitted to the Austrian Data Protection Authority on August 17, 2020, by a resident of Austria (hereinafter referred to as the "complainant"), who is represented, pursuant to Article 80(1) of the Regulation, by the non-profit organization noyb – European Centre for Digital Rights.

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

2. In the complaint, it is stated, among other things, that:

- 2.1. the complainant, on August 14, 2020, at 10:41 a.m., visited the website <http://cfa.com.cy> (hereinafter referred to as the "website"), while logged in with his email address to a Google account,
- 2.2. the Respondent has integrated the HTML code for Google Services (including Google Analytics),
- 2.3. during the complainant's visit to the website, the Respondent processed his personal data (at least the IP address and cookie data), of which at least some were transmitted to Google,
- 2.4. the use of Google Analytics is subject to the Terms of Service of Google Analytics and the Data Processing Terms of Google Ads, which have been updated, effective from August 12, 2020 (New Data Processing Terms of Google Ads),
- 2.5. according to the Terms of Service of Google Analytics, Google LLC (1600 Amphitheatre Parkway Mountain View, CA 94043, USA) is the contracting partner of the data controller. According to point 5.1.1(b) of the Data Processing Terms of Google Ads and the New Data Processing Terms of Google Ads, Google LLC processes personal data on behalf of the data controller and meets the requirements as a data processor, in accordance with Article 4(8) of the Regulation,
- 2.6. according to point 10 of the Data Processing Terms of Google Ads, the data controller has agreed that Google may store and process personal data (in this case, of the complainant) "[...] in the USA or any other country in which Google or any of its Subprocessors maintain facilities." The transfer of the complainant's personal data by the data controller (a company based in the EEA) to Google LLC or its subprocessors, in the USA (or any other country outside the EEA) requires a legal basis according to Articles 44 and subsequent articles of the Regulation,
- 2.7. as the CJEU has invalidated the "Privacy Shield" decision in the ruling C-311/18, the data controller can no longer base the transfer of data to Google LLC in the USA on an adequacy decision, pursuant to Article 45 of the Regulation. However, the data controller and Google LLC continued to rely on the invalidated "Privacy Shield" for almost four weeks after the ruling, as evidenced by point 10.2 of the Data Processing Terms of Google Ads,
- 2.8. the data controller cannot also rely on the transfer of data on standard contractual clauses, according to Article 46(2)(c) and (d) of the Regulation, if the third country does not ensure adequate protection of personal data transferred under those clauses, pursuant to EU law. The CJEU explicitly found that further transfers to companies falling under 50 U.S. Code § 1881a not only violate the relevant articles of Chapter V of the Regulation but also Articles 7 and 8 of the Charter of Fundamental

Rights of the EU, as well as the essence of Article 47 of the Charter (C-362/14 ("Schrems I"), para. 95). Therefore, any further transfer violates the fundamental right to privacy, data protection, and the right to effective judicial protection and to a fair trial,

2.9. Google LLC qualifies as a provider of electronic communications services within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to U.S. information surveillance under 50 U.S. Code § 1881a ("FISA 702"). As evidenced by the "Snowden Revelations" and the...

****Google Transparency Report****

LLC (<https://transparencyreport.google.com/userdata/us-national-security>), Google LLC actively provides personal data to the U.S. government, pursuant to 50 U.S. Code § 1881a,

2.10. Consequently, the data controller is unable to ensure the adequate protection of the personal data of the complainant that is transferred to Google LLC. However, since August 12, 2020, the data controller and Google LLC have attempted to rely on standard contractual clauses for the transfer of data to the U.S., as evidenced by point 10.2 of the New Google Ads Data Processing Terms,

2.11. This practice completely disregards paragraphs 134 and 135 of the aforementioned ruling of the CJEU, which imposes a legal obligation on the data controller to refrain from transferring the complainant's data, or others, to Google LLC in the U.S. However, for more than a month after the ruling, the data controller has not acted in accordance with the decision,

2.12. Accordingly, Google LLC continues to accept data transfers from the EU/EEA, based on standard contractual clauses, despite the clear ruling of the CJEU and in violation of Articles 44 to 49 of the Regulation. Google LLC further discloses personal data from the EU/EEA to the U.S. government in violation of Article 48 of the Regulation. In many public statements, Google has acknowledged that it has not changed this practice: "The Privacy Shield frameworks provided a mechanism to comply with data protection requirements when transferring EEA, UK or Swiss personal data to the United States and onwards. While the Swiss-U.S. Privacy Shield currently remains valid, in light of the recent Court of Justice of the European Union ruling on data transfers, invalidating the EU-U.S. Privacy Shield, Google will be moving to reliance on Standard Contractual Clauses for relevant data transfers, which, as per the ruling, can continue to be a valid legal mechanism to transfer data under the GDPR. We are committed to having a lawful basis for data transfers in compliance with applicable data protection laws.",

2.13. Pursuant to Articles 58 and 83 of the Regulation, the competent Supervisory Authority may use corrective powers and enforcement powers, both against the data controller and the processor, namely Google LLC,

2.14. According to the aforementioned ruling of the CJEU, the competent Supervisory Authority must suspend or terminate the transfer of personal data to the third country, pursuant to Article 58(2)(f) and (i) of the Regulation,

2.15. The complainant requests that:

2.15.1. The complaint be fully investigated, pursuant to Article 58(1) of the Regulation, and clarified:

(a) To the U.S. or to any other third country or international organization, on what transfer mechanism the data controller based the data transfer,

(b)

(c) Whether the provisions of the Google Analytics Terms of Service and the (New) Google Ads Data Processing Terms, at the time of the complaint, met the requirements of Article 28 of the Regulation regarding the transfer of personal data to third countries,

2.15.2. An immediate prohibition or suspension of any data transfer from the data controller to Google LLC in the U.S. be imposed, and the return of the data to the EU/EEA or to another country providing adequate protection be ordered, pursuant to Article 58(2)(d), (f) and (i) of the Regulation,

What personal data was transferred from the data controller to Google LLC in the U.S.

3. The complainant is likely only one of thousands of users (Article 83(2)(a) of the Regulation),

The data controller, in its letters dated January 29, 2021, and July 13, 2022,

2.15.3. An effective, proportionate, and deterrent fine be imposed on the data controller and Google LLC, pursuant to Article 83(5)(c) of the Regulation, taking into account that:

(a)

(b) At the time of the complaint, more than a month had passed since the C-311/18 ruling of the CJEU, and the data controller had not taken any measures to bring its processing operations into compliance with the provisions of the Regulation (Article 83(2)(b) of the Regulation).

Where reference is made above to the data controller, it is understood to mean the data controller.

3. In the context of the investigation of the complaint, my Office sent letters to the data controller with clarifying questions, on December 23, 2020, and June 10, 2022.

4. Among other things, it stated the following:

4.1.

For the purposes of compliance with the Regulation of Electronic Communications and Postal Services Law of 2004 (N. 112(1)/2004) and the Regulation, the entity has engaged legal and other advisors to counsel it in order to create and implement relevant compliance policies, including necessary forms or tools. Among the advice was the posting of a specialized and updated consent tool for website visitors ("cookie banner"). However, due to an oversight, there was a delay in posting the aforementioned cookie banner, which has already been done, and the cookie banner is now posted on the website, while it refers to the Cookies Policy of the entity.

4.2. The website uses cookies as described in the Cookies Policy that is posted on it, including analytical cookies from Google Analytics.

4.3. Consent for the use of analytical data: according to Article 99(5) of Law 112(I)/2004, analytical cookies are not strictly necessary cookies since their sole purpose is not the "transmission of a communication, over an electronic communications network," nor are they "strictly necessary for the provider of the information society service requested explicitly by the subscriber or user to provide that specific service."

4.4. Personal data:

4.4.1. According to Recital 30 of the Regulation: "Natural persons may be associated with online identifiers provided by their devices, applications, tools, and protocols, such as IP addresses, cookie identifiers, or other identifiers such as radio frequency identification tags. These may leave traces which, particularly when combined with unique identifiers and other information received by servers, can be used to create profiles of natural persons and identify them."

4.4.2. Google Analytics collects various data (elements) such as: pages visited by the user and time spent on each page, website detail reports (such as the URL), type of browser, type of operating system, IP address, etc. The entity is not able to identify the user solely from the use of this data due to the absence of combination with other identifying elements that leave traces and thus allow for the identification of the user. This is also explained by the purely informational nature of the entity's website. That is, the user does not submit personal data since it is not required to have an account to use the website (login), nor is there a possibility of purchasing products and services (shopping basket), nor is there any other means of verifying their identity while browsing the website (authentication).

4.4.3. Despite the above, the entity understands that by storing such data, as a result of the use of cookies, there is at least a minimal possibility that the user may be indirectly identified in the event that it is combined with other identifying elements. For any such processing of personal data, the user provides their consent through the relevant tool that is posted on the website.

4.5. Transfer of personal data to a third country outside the EEA, pursuant to Chapter V of the Regulation:

4.5.1. Some of the data collected through the use of analytical cookies (e.g., IP address) may be transferred to Google servers located in the United Kingdom or the USA.

4.5.2. In its recent decision C-311/18 (Schrems II - July 2020), the Court of Justice of the European Union (CJEU) declared the decision on the Privacy Shield invalid. At the same time, the CJEU ruled that the legality of the transfer of personal data based on standard contractual clauses must be determined by the outcome of the assessment of the data and the circumstances of the transfer, as well as any additional measures that may be implemented.

4.5.3. On this basis, the European Data Protection Board, with Recommendations 01/2020, announced a roadmap for the steps (5 steps) that data exporters must follow in order to determine whether they need to take additional measures to be able to lawfully transfer data outside the EEA. Reference is made to steps 2, 3, and 4 regarding potential data transfers to Google's server in the USA:

4.5.3.1.

Step 2 and 3: verification of the transfer tool on which the transfer is based and assessment of the legislation of the third country that could affect the effectiveness of the transfer tools on which the exporter relies: the processor Google claims that it continues to rely on the standard contractual clauses. It has also announced that it has updated the terms of use of its services (e.g., Google Analytics) to reflect that it relies on the new standard contractual clauses. Google specifically announced the

Step 4: Additional Measures:

In August 2020, it was stated that "we will continue to monitor the development of data transfer mechanisms based on the GDPR and are committed to having a legal basis for data transfers in accordance with applicable data protection laws."

Considering that: a) the U.S. has not been recognized by the EU as a country with an adequate level of personal data protection, and b) in the Schrems II case, the CJEU found that transfers to companies such as Google, which are subject to "FISA 702," violate the protection principles of the Regulation, the Controller decided that despite the fact that Google still relies on standard contractual clauses, it would be safe and feasible to also rely on the basis of Article 49(1)(a) of the Regulation, namely the explicit consent of the user. In this way, it is made clear to the user, through the Cookie Policy and the cookie banner, that data may be transferred to the U.S. under certain conditions and with additional protective measures, as described below (Step 4). The Controller does not overlook the fact that there was a delay, inadvertently, in posting the cookie banner; however, the Controller's Policy and its operation align with the spirit of Article 49(1)(a) of the Regulation.

4.5.3.2.

Taking the above into account, the Controller regulated the aforementioned cookies in such a way that the user's/visitor's IP address is stored and transmitted after the anonymization of the IP address (Appendix 2 of Recommendations 01/2020). The anonymization/masking of IP addresses is performed immediately after data is received from the Google Analytics collection network, before storage or processing.

4.6. Recipients of the cookies:

Apart from the cookie service providers (e.g., Google), the data from the cookies are not transferred to other third parties without the knowledge of the Controller, except in cases where the said providers use third parties to enable the provision of their services, where it is legally permissible to do so, or where the providers transfer or transmit data to third parties as a result of their direct relationship with the users. The Controller also uses website developers who, among other things, are responsible for the technical settings of the cookies on the website.

4.7. Duration of processing:

The Controller will process information as a result of the use of cookies for as long as the cookies last, as indicated in the Cookie Policy and the cookies banner.

4.8. The Controller believes that it has taken into account the relevant legislation governing the use of cookies and the protection of personal data, and has adopted all reasonably necessary technical measures to protect user data, as well as transparency measures regarding the detailed information

provided to the user about the use of cookies by the Controller.

4.9. The Controller has developed and established transparent accountability mechanisms and makes serious and continuous efforts to improve its compliance with the Regulation, always respecting the rights and freedoms of those visiting the website, as well as the interests of stakeholders and those who expect from it, and is willing to fully cooperate with my Office regarding the above.

4.10. Following my request for a signed copy of the standard contractual clauses to be submitted to my Office, clearly showing the template clauses used and the role of the Controller, the Controller submitted an electronic address of the Google website, where the standard contractual clauses that were in effect at that time were available.

However, the Controller has not responded to my Office's questions, which were related to the standard contractual clauses, such as:

4.10.1. whether it has verified (with the recipients) that there is nothing in the legislation of the third country that prohibits the recipients from complying with their contractual obligations as arising from the standard contractual clauses, in order to ensure that the level of protection of personal data of individuals guaranteed by the Regulation in the EEA is not undermined,

4.10.2. whether it has concluded that the recipients can indeed guarantee the fulfillment of their contractual obligations as provided in the standard contractual clauses, what were the detailed reasons for this conclusion, providing appropriate evidence,

4.10.3. whether it has concluded that the recipients cannot guarantee the fulfillment of their contractual obligations.

as provided in the standardized contractual clauses, whether it has examined the implementation of supplementary measures, and if so, which ones. Furthermore, whether it has verified that these supplementary measures can be implemented in practice and that there is nothing in the legislation of the third country that would prevent the recipients from doing so, in order to ensure that the level of protection of personal data guaranteed by the Regulation in the EEA is not undermined. What was, in detail, the outcome of this assessment and what were the reasons for the conclusion of the Respondent.

4.11. The Respondent submitted to my Office:

4.11.1. a copy of the record of processing activities of personal data,

4.11.2. a copy of the Cookies Policy, and

4.11.3. a screenshot showing the existing settings of the cookie banner.

The record of activities includes as a processing activity "Data via website (cookies)", with the following information:

legal basis: consent,

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purpose: use of cookies on the website solely for the purpose of personalizing content, providing functional means, and analyzing browsing on our website,

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-
-

cookie services (e.g., Google),

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standard contractual clauses and/or Article 49(1)(a) of GDPR 2016/679,

data subjects: users/visitors of the website,

personal data: IP address, MAC address, cookies, etc.,

categories of recipients: website administrators/supporters and providers,

data transfer: yes to cookie providers (e.g., Google) based on

Legal Framework

proposed period: for as long as the cookies last in each case.

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B.

5. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

As the data controller, Article 4 of the Regulation defines "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

6. As the processor, Article 4 of the Regulation defines "the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller."

7. Article 5 of the Regulation provides the following:

Regarding the principles governing the processing of personal data, personal data:

"1.

a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'),

b) shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ('purpose limitation'),

c) shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization'),

d) shall be accurate and, where necessary, kept up to date; every reasonable step must be taken to ensure that personal data that are inaccurate, having regard to the purposes for which they are processed, are erased or rectified without delay ('accuracy'),

e) shall be kept in a form which permits identification of data subjects for no longer than is necessary for the purposes for which the personal data are processed; personal data may be stored for longer periods, provided that the personal data will be processed solely for the purposes for which they are processed ('storage limitation')."

For archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, and provided that appropriate technical and organizational measures required by this regulation are applied to ensure the rights and freedoms of the data subject ("storage limitation"),

** (d) **

are processed in a manner that guarantees the appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

2.

compliance with paragraph 1 ("accountability").

The data controller bears the responsibility and is in a position to demonstrate compliance.

Pursuant to Article 44 of the Regulation, it is provided that:

**"Any transfer of personal data which are processed or intended to be processed after their transfer to a third country or international organization shall take place only if, subject to the other provisions of this regulation, the conditions laid down in this chapter are complied with by the data controller and the

processor, including for further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this regulation is not undermined."**

9.

10.

Pursuant to Article 57, paragraph 1, point (f) of the Regulation, the Commissioner for Data Protection has the duty to:

***"handle complaints lodged by the data subject or by a body or organization or association in accordance with Article 80 and investigate, to the extent appropriate, the subject matter of the complaint and inform the complainant of the progress and outcome of the investigation within a reasonable period of time, particularly if further investigation or coordination with another supervisory authority is required."**

11.

Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

***"Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence or place of work or the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this regulation."**

12.

Pursuant to Article 58, paragraph 2, of the Regulation, the Commissioner for Data Protection has the following corrective powers:

to instruct the data controller to notify the breach

to issue warnings to the data controller or the processor that intended processing operations are likely to infringe provisions of this regulation,

(a)

to reprimand the data controller or the processor when processing operations have infringed provisions of this regulation,

(b)

to instruct the data controller or the processor to comply with the requests of the data subject to exercise their rights under this regulation,

(c)

to instruct the data controller or the processor to bring processing operations into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specified time limit,

(d)

to provide personal data to the data subject,

(e)

to prohibit processing,

(f)

to instruct the rectification or deletion of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to instruct the communication of these actions to recipients to whom the personal data have been disclosed pursuant to Article 17, paragraph 2, and Article 19,

(g)

to withdraw certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, provided that the certification requirements are not met or are no longer met,

(h)

to impose administrative fines pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

(i)

to impose a temporary or definitive limitation, including ordering the suspension of data flows to a recipient in a third country or to an international organization.

Regarding the general terms for the imposition of administrative fines, Article 83, paragraph 2, of the Regulation provides the following:

2. Administrative fines, depending on the circumstances of each individual case...

Case

In cases where additional or alternative measures are imposed instead of the measures referred to in Article 58, paragraph 2, points (a) to (h) and in Article 58, paragraph 2, point (i), when deciding on the imposition of an administrative fine, as well as regarding the amount of the administrative fine for each individual case, the following shall be duly considered:

1.

- (a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered, the intent or negligence that caused the infringement,
- (b) any actions taken by the data controller or the processor to mitigate the damage suffered by the data subjects,
- (c) adherence to approved codes of conduct in accordance with Article 40 or the degree of cooperation with the supervisory authority to remedy any relevant previous infringements by the data controller or the processor,
- (d) the categories of personal data affected by the infringement,
- (e) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures implemented pursuant to Articles 25 and 32,
- (f) the processor's actions,
- (g) the infringement and the limitation of its potential adverse effects,
- (h) the manner in which the supervisory authority became aware of the infringement, particularly whether and to what extent the data controller or the processor notified the infringement,
- (i) in cases where measures referred to in Article 58, paragraph 2 were previously ordered against the involved data controller or processor regarding the same subject matter, compliance with those measures,
- (j) approved certification mechanisms in accordance with Article 42 and any other aggravating or mitigating factors arising from the circumstances of the specific case, such as the financial benefits gained or damages avoided, directly or indirectly, from the infringement.

3.

In cases where the data controller or the processor, for the same or related processing operations, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious infringement.

4.

Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- (a) the obligations of the data controller and the processor according to Articles 8, 11, 25 to 39, and 42 and 43, the obligations of the certification body according to Articles 42 and 43,
- (b)
- (c) the obligations of the monitoring body according to Article 41, paragraph 4.

5.

Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- (a) applicable for the approval, according to Articles 5, 6, 7, and 9,
- (b) up to 22,

- (c) or to an international organization according to Articles 44 to 49,
- (d) those established under Chapter IX, the transfer of personal data to a recipient in a third country, the fundamental principles for processing, including the conditions that the rights of the data subjects according to Articles 12, any obligations according to the law of the member state,
- (e) non-compliance with an order or with a temporary or permanent restriction of processing or with the suspension of data flow imposed by the supervisory authority pursuant to Article 58, paragraph 2, or failure to provide access in violation of Article 58, paragraph 1.

****Reasoning****

At this point, I note that any further processing is not examined.

****C.****

14. Based on the information provided by the complainant, it appears that the subject of the complaint is the potential transfer of the complainant's data and whether there was an adequate level of protection for their data, as provided in Article 44 of the Regulation, due to the incorporation of the Google Analytics tool (hereinafter referred to as the "tool") on the website. In this context, it should also be investigated whether Google LLC has an obligation to comply with Article 44 of the Regulation.

15.
in this Decision.

16. The entity in question is a legal person. Among its purposes is the organization and supervision of Cypriot football and its representation in international football. The entity provides information to the ****Website for Cypriot Football, in Greek and English****

Considering the subject matter of the content of the website, it appears that the website targets individuals located in Cyprus. Furthermore, the Respondent is based and operates solely in Cyprus and not in any other Member State.

17. The Google Analytics tool is a measurement service that allows website owners to measure, among other things, traffic characteristics. This includes measuring the traffic of visitors who visit a specific website. In this way, it becomes possible to understand the behavior of the website's visitors and how they interact with a specific website. Specifically, a website owner can create a Google Analytics account and view reports regarding the website using a dashboard. Google Analytics can also measure and optimize the effectiveness of advertising campaigns conducted by website owners on Google advertising services.

18. It is not known when the tool was installed on the website. However, by studying the har file submitted by the complainant, it is confirmed that at the relevant time the tool was installed.

19. The Respondent decided to integrate the tool into the website <http://cfa.com.cy>, with the sole purpose, as stated in the activity file, "of personalizing content, providing functional means, and analyzing browsing on our website." Therefore, due to its own decision - choice, the tool code was installed, which was provided to it by Google LLC.

20. Based on the above decision of the Respondent, I find that the Respondent is the data controller for this specific processing, as it has determined the purposes and means of the processing.

21. Due to its own decision to integrate the tool, there was processing of the personal data of the complainant. Even if no processing is carried out directly by the Respondent, any processing that occurs arose due to the decision of the Respondent itself.

22. Therefore, as the data controller, it was obliged to take all measures so that the level of protection of the personal data it processes or assigns processing to a processor is not undermined.

23. In point 5.1.1(b) of the Google Ads Data Processing Terms (dated January 1, 2020) and the New Google Ads Data Processing Terms (dated August 12, 2020), it is stated: "(b) Google is a processor of Customer Personal Data under the European Data Protection Legislation."

24. It is stated that: "Data Storage and Processing Facilities. Customer agrees that Google may,

subject to Section 10.2 (Transfers of Data), store and process Customer Personal Data in the United States of America and any other country in which Google or any of its Subprocessors maintains facilities."

24.1. Also, in point 10 of the New Google Ads Data Processing Terms (dated August 12, 2020), it is stated: "Data Storage and Processing Facilities. Customer agrees that Google may, subject to Section 10.2 (Transfers of Data), store and process Customer Personal Data in any country in which Google or any of its Subprocessors maintains facilities."

25. Therefore, there is an acknowledgment by Google LLC regarding its relationship with the Respondent concerning the processing of the personal data of the visitors to the website. Based on this relationship, data processing is assigned to Google LLC by the data controller, which may take place in any country where Google LLC or its subprocessors have facilities.

26. Moreover, the Respondent, in its letter dated January 29, 2021, refers to Google as "the processor Google."

27. As the complainant stated, on August 14, 2020, at 10:41 a.m., he visited the website while logged in with his email address to a Google account. The har file submitted by the complainant to my Office contains information about the communication between the web server and the complainant - visitor, as well as information regarding cookies used during navigation. It has also been revealed that data sharing occurred through cookies from services provided by Google for marketing and analytics purposes.

28. The cookies `_ga` and `_gid` are also included, which are stored on the device of the user - visitor of a website. In these cookies, unique user identification numbers are processed. The unique numbers allow for the differentiation of visitors to a website and whether the visitors have... visited the specific website in the past or not. By using only these identification numbers, it is possible to distinguish the visitors of a website.

29. Based on the above, it is evident that there was processing of personal data of the complainant. There was processing, including transmission, of the unique user identification numbers and his IP address.

30. Moreover, there is an admission from the Respondent that Google Analytics collects various data (information) such as: pages visited by the user and time spent on each page, website detail reports (such as the URL), type of browser, type of operating system, IP address, etc.

31. The Respondent stated that it is unable to identify the user solely from the use of this data due to the absence of a combination with other identifying elements that leave traces and thus allow for the identification of the user. It also mentioned that this is explained, additionally, by the purely informational nature of the website, meaning that the user does not submit personal data since it is not required to have an account to use the website (login), nor is there the possibility of purchasing products and services (shopping basket), nor is there any other way to verify his identity while browsing the website (authentication). However, the above positions of the Respondent do not negate the relevant data processing that was conducted.

32. Since the tool is embedded in the website, Google LLC has the technical ability to receive information that a specific Google account user has visited this website, provided that the user is logged into his Google account.

33. In the decision of the European Data Protection Supervisor, dated January 5, 2022, against the European Parliament, regarding the use of Google Analytics, it is stated that cookies which make the user identifiable constitute personal data, regardless of whether the identity of the user is unknown or has been deleted after collection. It is also mentioned that all data that includes identifying codes which can be used for the identification/separation of users are considered personal data and must be handled and protected as such. Despite the fact that the European Data Protection Supervisor is responsible for the implementation of Regulation (EU) 2018/1725, a relevant interpretation can also be

applied in the present case.

34. According to the case law of the CJEU, specifically based on the judgment of the Court of June 17, 2021, C-597/19, and the judgment of the Court of October 19, 2016, C-582/14, it is evident that the IP address constitutes personal data, under Article 4 of the Regulation. Furthermore, the IP address does not lose its status as personal data because the means of identification belong to third parties.

35. The combination of unique user identification numbers with other elements, such as for example browsing data or the IP address, can lead to the identification of the user. Therefore, as it appears, the identification of the complainant was possible due to the integration of the tool on the website. Moreover, the Respondent mentioned to my Office that it understands that with the storage of specific data, as a result of the use of cookies, there is at least a minimal possibility of indirectly identifying the user, in the event that they are combined with other identifying elements.

36. In the Guidelines 5/2021 of the European Data Protection Board, regarding the interaction between the application of Article 3 and the provisions for international transfers according to Chapter V of the Regulation, the following three cumulative criteria are provided for the characterization of a processing operation as a transfer:

- “1) The data controller or the processor ("exporter") is subject to the GDPR for the specific processing.
- 2) The exporter communicates through transfer or makes available in another way personal data, which is subject to the said processing, to another data controller, a joint data controller, or a processor ("importer").
- 3) The importer is located in a third country, regardless of whether the said importer is subject to the GDPR for the given processing according to Article 3, or is an international organization.”

37. 37.1. The Respondent is established in Cyprus and are responsible for the operation of the website,

37.2. The Respondent disclosed personal data of the complainant, due to the installation of the tool on the website, which resulted in their transmission to Google LLC in the USA,

37.3. Google LLC has a registered office in the USA.

38. Therefore, it follows that the installation of the tool on the website resulted in the transmission of the complainant's data to the USA. At this point, I note that the Respondent stated that some of the data collected through the use of analytical cookies (e.g., IP address) may be transmitted to Google servers located in the United Kingdom or in the USA. Therefore, it does not exclude the relevant transmission.

39. Google LLC is characterized as a provider of electronic communications services, within the meaning of 50 U.S. Code § 1881(b)(4) and, therefore, is subject to oversight by the U.S. intelligence services in accordance with 50 U.S. Code § 1881a (“FISA 702”), and thus has the obligation to provide personal data to U.S. authorities.

40. Due to the transmission to the USA, access to the personal data of the complainant by U.S. authorities could occur, a fact that the Respondent cannot ascertain. In this case, the Respondent is not exempt from its responsibility for protecting the personal data of the complainant.

Moreover, the Respondent continued to maintain the tool installed on its website, even after the decision of the European Court, case C-311/18, dated July 16, 2020, according to which the "EU-U.S. Privacy Shield" (Executive Decision (EU) 2016/1250 of the Commission, dated July 12, 2016) was deemed invalid.

41. In the event of transmission, the relevant obligations set forth in Chapter V of the Regulation must be observed. Specifically, an adequate level of protection for the transmitted data must be provided, as stipulated in Article 44 of the Regulation. Therefore, one of the following conditions must exist:

- 41.1. adequacy decision, pursuant to Article 45 of the Regulation,
- 41.2. appropriate safeguards, pursuant to Article 46 of the Regulation,
- 41.3. derogations for specific situations, pursuant to Article 49 of the Regulation.

42. Due to the aforementioned decision of the European Court, case C-311/18, there was no adequacy decision for the USA at the relevant time.

43. In this Decision, a more detailed analysis of the legal status of the USA (as a third country) is not required, since the CJEU has already addressed this in the aforementioned decision of July 16, 2020. Based on the CJEU's decision, it follows that the EU-U.S. adequacy decision did not provide an adequate level of protection for individuals under the relevant U.S. legislation and the implementation of official surveillance programs, among others under Article 702 of FISA and Executive Order 12333 in conjunction with Presidential Policy Directive 28 (PPD-28).

44. Based on the evidence presented to me, it appears that at the relevant time, between the Respondent and Google LLC, standardized contractual clauses were in effect, pursuant to Article 46(2)(c) of the Regulation. In the aforementioned decision of the CJEU, dated July 16, 2020, it was noted that standardized contractual clauses, as a transmission tool, cannot bind the authorities of third countries. Specifically, among other things, the following is stated:

“125. However, although the aforementioned clauses are binding on the data controller established within the Union and on the recipient of the transmission of personal data established in a third country, in the event that they have entered into a contract referring to these clauses, it is undisputed that these clauses do not bind the authorities of the third country, since they are not parties to the contract.

126. Therefore, while there are situations in which, depending on the stage of development of the law and the practices in the relevant third country, the recipient of such a transmission is able to ensure the necessary protection of the data solely on the basis of the standardized data protection clauses, there are other cases in which the terms contained in these clauses may not constitute an adequate means to ensure, in practice, the effective protection of the personal data transmitted to the relevant third country. This occurs, for example, when the law of the third country allows its public authorities to intervene in the exercise of the rights enjoyed by data subjects in relation to that data.”

45. Therefore, the CJEU concluded in its decision that standardized contractual clauses cannot provide, for compliance with the level of protection required by Union law, guarantees that go beyond the contractual obligation. Specifically, the decision explains that:

“133. It thus becomes clear that the standardized data protection clauses established by the Commission pursuant to Article 46(2)(c),

****The GDPR has the exclusive purpose of providing****

to the controllers or processors established within the Union contractual guarantees

that apply uniformly in all third countries and, therefore, regardless of the level of protection ensured in each of them. To the extent that

these standardized data protection clauses cannot, by their nature, provide guarantees that go beyond a contractual

obligation to ensure compliance with the level of protection required by

Union law, it may be necessary, depending on the situation prevailing

in a specific third country, for the controller

to take additional measures to ensure compliance

with this level of protection.

46. Based on the above, and considering that the

Controller did not mention to my Office any supplementary measures that were, in combination with the standardized

contractual clauses, in effect at the relevant

time, the above clauses cannot be considered as an adequate guarantee for the transfer.

47. The Controller informed my Office that it would be safe and feasible to rely

“additionally” on the derogation of Article 49(1)(a)

of the Regulation, namely on the explicit consent of the user - visitor.

48. However, the derogations for specific situations in Article 49 of the Regulation can only be used in individual cases and cannot be the rule. Therefore, the consent

of users cannot be used for usual repeated transfers (such as the one activated each time the user visits the website), but only as a derogation for specific cases.

49. As a result of the above, the transfer of data cannot be based on Article 49(1)(a) of the Regulation and generally on any other derogation, as defined in that article.

50. The Controller stated that it has regulated the relevant cookies in such a way that the IP address of the user / visitor is stored and transmitted after the anonymization of the IP address. As stated, the anonymization / masking of IP addresses is performed immediately after the data is received from the Google Analytics collection network, before storage or processing.

51. However, the anonymization of the IP address cannot be considered effective, as the data is processed by Google LLC before the anonymization. Even if it is assumed that the IP address is processed only on servers in the EEA, it should be noted that according to the relevant legislation of the U.S., Google LLC may be required by U.S. intelligence services to provide the IP address. Moreover, the IP address is one of the various elements of the complainant's digital footprint, and not the only one.

52. It cannot be considered that the anonymization mentioned by the Controller ensures an adequate level of security for the data of the users - visitors of the website.

53. Therefore, based on all the above elements, I find that the Controller has not demonstrated that, due to the transfer, the level of protection of natural persons guaranteed by the Regulation is not undermined, in violation of Article 44 of the Regulation.

54. The Controller stated that there was a delay in posting a specialized and updated consent tool for the visitors of the website (cookie banner) due to an oversight. Therefore, the existence of the cookie banner aims at two reasons: a. to inform the users - visitors about the processing that

is carried out, and b. to obtain consent for the processing.

Without, of course, this meaning that due to the information, the collection, storage, or transfer of data is legitimized, or that the consent constitutes the correct legal basis for the specific processing.

54.1. Moreover, as it appears, at the relevant time, namely at the complainant's visit to the website, the cookie banner was not integrated.

55. Beyond the above, it should be examined whether Google LLC is subject, in this case, to the obligations set out in Chapter V of the Regulation. Based on the Guidelines 5/2021 of the European Data Protection Board, it appears that there is a transfer if "The exporter discloses through transfer or makes available in another way personal data, which are subject to the processing, to another controller, joint controller, or processor ('importer')." Therefore, the requirements of Chapter V of the Regulation must be complied with by the exporter of the data, namely the Controller, but not by the importer of the data, in this case Google LLC.

56. Therefore, assessing the transfer in question, it cannot be determined that there is a violation of Article 44 of the Regulation by Google LLC.

****D.****

57. Taking into account all the above elements, as they have been presented, and based on the powers conferred on me by Article 57(1)(f) of the Regulation, I find that there is a violation by the Controller:

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the level of protection of the complainant guaranteed by the Regulation is not undermined.

58. Having considered and assessed:

(a)
the provisions of Article 58(2) and Article 83 of the Regulation,

(b)
before me based on all the existing correspondence,

I conclude that, under the circumstances, the imposition of an administrative fine is not justified.

all the circumstances and factors that the complainant and the Respondent presented regarding the applicable legislative basis concerning the administrative sanctions provided for in Article 44 of Regulation (EU) 2016/679, because it did not ensure that the

Conclusion

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Also, due to the new EU – US Data Protection Framework, namely the Executive Decision (EU) 2023/1795 of the Commission of July 10, 2023, regarding the adequacy of the level of protection of personal data based on the EU – US framework for data protection, I find that the imposition of an immediate prohibition or suspension of any data transfer from the Respondent to Google LLC in the U.S., as requested by the complainant, is not justified.

59. Nevertheless, taking into account the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(b) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions, to address the Cyprus Football Association:

A reprimand for the violation of Article 44 of Regulation (EU) 2016/679, and an Order that, in the event it continues to use the tool, it ensures that the transfer can take place on the basis of the new EU – US Data Protection Framework, Executive Decision (EU) 2023/1795, or on the basis of appropriate safeguards pursuant to Article 46 of the Regulation, and to inform me accordingly within one month from the receipt of this Decision.

Peace Loizidou Nikolaidou
Commissioner for the Protection of Personal Data

February 28, 2024